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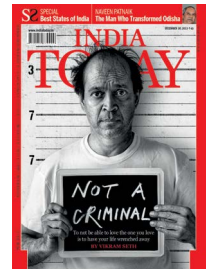
EDITOR-IN-CHIEF

India has been remarkably progressive as a modern republic on the whole ensemble of themes relating to marriage and love. As was ancient India. Its very first Parliament passed the Special Marriage Act in 1954, giving its citizens the right to marry across religion and caste. In 1971, the Medical Termination of Pregnancy Act empowered all women with rights over their bodies—half a century later, even 'advanced countries' like the US are regressing on the abortion question. In 1978, the Supreme Court accorded legitimacy to live-in relationships—a series of later judgments solidified this, culminating in a 2013 verdict that set out its parameters. And in 2018, India decriminalised homosexuality, joining a comity of 130-odd nations. Now, the demand for same-sex marriage comes as another litmus test for India's legal-constitutional system.

It's an issue that directly affects the lives of only a tiny sliver of the world's most populous nation. But the freedoms and legal security a minority enjoys are a gauge of the health of a democracy. At the same time, the issue poses a vexing set of theoretical and practical dilemmas before the system. Of the two, the first is easier to resolve. Our Constitution guarantees equal rights to all citizens. Thus, logically, same-sex couples seeking the right to legally sanctioned marriage calls for nothing more than the rights-based framework to be extended in specific ways. It is in the practical realm that the going gets challenging.



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To the Narendra Modi government's credit, it did not raise any obstacle of non-acquiescence before the Supreme Court in 2018 when gay sex was decriminalised. When the final histories are written, it would count as a momentous step and one that surely ranks among its most liberal. With gay marriage, the government has baulked and become the main objector to the batch of petitions seeking those rights. Even globally, one sees attitudes narrowing on this issue: only 34 countries have legally sanctioned gay marriage. That list contains Catholic-majority nations such as Ireland—60 per cent of whose population voted 'yes' in a referendum—Portugal and Spain, and they have chosen to go forth despite stiff opposition from the Vatican. Yet, the advance guard is a noticeably slenderer pool. In Asia, only one country has taken this step. Does India have it in itself to join that democratic frontier?

An explanation at more fundamental levels must preface the answer to that. Firstly, why do same-sex couples seek the right to marry like heterosexual couples when they already have the right to live together? Does it not subvert their own claim to represent an alternative to society's often-regressive norms? Well, several reasons play out at the complex, pragmatic level, from simple things like opening a joint account or having a joint rent lease to being able to enter one's partner as a beneficiary in insurance policies or as a nominee in financial investments, to not facing income-tax queries if they transfer money to each other, to more broad-based guarantees like having a legal shield against family violence, and thornier questions such as the rights to adoption, inheritance and transfer of family property.

Above all, there's the sheer symbolism. It would help if you felt that you were not illegal but accepted. Mumbai-based filmmaker Sridhar Rangayan, describing the existential situation he and his writer-director partner Saagar Gupta are in, puts it poignantly for INDIA TODAY: "Saagar has been my partner for so many years, but he can't be called a family member. As of now, he is just a roommate." In some cases, parental approval will come only with legal sanction.

What are the difficulties in evolving a more enabling legal framework? In our cover story this week, Executive Editor Kaushik Deka and Deputy Editor Suhani Singh lay out the entire panoply of questions. Social opposition is one aspect: personal laws flowing from theological codes are notoriously resistant to reform. But what the petitioners seek is only an amendment in the purely secular Special Marriage Act, which uses the gender-specific definition of 'husband' and 'wife' for conjugal partners. It would stand to logic that a law that came into being as a piece of reform—to create a legally enshrined zone of liberty—fulfils itself by going one step further. But changing those definitions to a gender-neutral term like 'spouse' is no simple affair. It will have a cascading effect on a whole series of laws about conjugal rights that necessarily use gender-specific terms, for instance, ones that accord women legal protection. Also, there are questions such as which party becomes liable to pay alimony in case of divorce.

The debate touches upon another sensitive topic. Framing new laws is the province of the legislature, not the judiciary. At the same time, it's very much the judiciary's remit to examine laws to see if they fit constitutional guarantees such as fundamental rights. This formed the basis of the faceoff between the government and the Supreme Court till both sides wisely climbed down to a mode of cooperative negotiation. But progress is still a fraught path. We summarise the 'for' and 'against' arguments from a series of legal luminaries, including Supreme Court advocates and same-sex partners Menaka Guruswamy and Arundhati Katju, who say only absolute rights, rather than incremental tinkering, will be meaningful.

Social biases cannot be legislated away by decree. But it is not the law's job to merely reflect and reinforce social attitudes. Were it the case, we'd still be with such abominations as sati, child marriage, dowry, female infanticide, triple talaq and female genital mutilation. The law does walk ahead of society. India also presents this paradox of its ancient culture actually exhibiting a high degree of permissiveness towards what many modern cultures—including its own—see as transgressive practices. Mythologist Devdutt Pattanaik points out, "Hindu mythology celebrates the diverse. There is a space for everyone, provided it is based on dharma: compassion, reciprocity, and social responsibility." It's all about being human and humane. Star athlete Dutee Chand's predicament is an apt one to frame it. When she took her partner Monalisa Das to a hospital in Bhubaneswar, she could not sign the consent papers as a spouse. "The doctors kept asking me who I was to her," says Dutee. India has to answer that question.

(Aroon Purie)